

## 24LBCV01082 24LBCV01082

County: los-angeles

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### 1. Background

This is a lemon law case. On May

22, 2024, Plaintiffs Darius Pazdel and Jessarae M. Pazdel ("Plaintiffs") filed this action against Defendant American Honda Motor Company, Inc. ("Defendant").

On or about March 28, 2023, Plaintiffs entered into a warranty contract with Defendant regarding a 2022 Honda Accord ("Vehicle"). (Compl., ¶ 6.) Defects and nonconformities to warranty manifested themselves and the value of the Vehicle was worthless and/or de minimis. (Id. at ¶¶ 11-13.)

On March 20, 2026, Plaintiffs filed this Motion for Attorneys' Fees, Costs, and Expenses ("Motion").

On July 17, 2026, Defendant filed an opposition.

On July 23, 2026, Plaintiffs filed a reply with objections.

### 2. Requests for Judicial Notice

Plaintiffs submit 33 requests for judicial notice of orders, minute orders, and tentative rulings of attorneys' fees from other California cases. However, Plaintiffs do not attach the relevant documents anywhere to the Motion to furnish the court with sufficient information to enable it to take judicial notice of the matter. Accordingly, the Court denies the requests for judicial notice. (Evid. Code, § 453.)

### 3. Objections

Plaintiffs submit 2 objections to the Declaration of Travis Manfredi in support of Defendant's opposition. The Court overrules both objections.

### 4. Motion

for Attorneys' Fees

a.

Parties' Positions

Plaintiffs seek to recover attorneys' fees incurred in this litigation in the total amount of \$77,279.30, consisting of \$48,410.00 in attorney fees; (2) 1.35 multiplier enhancement of \$16,943.50; (3) \$7,925.80 in costs and expenses; and (4) \$4,000 for Plaintiffs' counsel to review Defendant's opposition, draft the reply, and attend the motion.

In opposition, Defendant argues this case does not warrant an upward multiplier, that the fee should be reduced to account for inefficiency of staffing twenty-nine different individuals for this case, and because Plaintiffs overestimated the time required for future tasks.

b. Entitlement

to Fees

Defendant does not oppose the motion as to the issue of entitlement of fees. It is undisputed, then, that Plaintiffs are the prevailing party and, as such, are entitled to an award of attorneys' fees pursuant to Civil Code section 1794, subdivision (d) and the parties' settlement.

c. Reasonableness

of Fees

The Court turns to the issue of reasonableness of the fees sought. "[T]rial courts have broad discretion in

determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and must be resolved on the particular circumstances of each case." (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) "Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

"[O]nce a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional, and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I. v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

i.

#### Reasonableness of Hourly Rates

"In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

Plaintiffs contend that their

hourly rates range from \$195.00 for law clerks to \$695.00 for senior partners. Defendant does not oppose these hourly rates. Accordingly, the Court will not reduce the hourly rates.

ii.

#### Reasonableness of Time Incurred

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the

absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

That said, “[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 36 Cal.3d 621, 635). The court may “make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure” in consumer law cases “when a voluminous fee application is made.” (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].)

Plaintiffs contend to have spent 109.6 hours prosecuting this action. (Chandy Decl., Ex. 1.) Plaintiffs argue that counsel was efficient and did not result in excessive or duplicative billing.

In opposition, Defendant argues that use of an excessive number of attorneys to staff a case leads to inherent inefficiency and justifies a reduction. Defendant argues that the 29 different individuals billing on a straightforward lemon law case is nearly three times as many as the Court of Appeals has found to be highly inefficient. Defendant argues that staffing eight different people to propound and respond to discovery, having partners do the work of associates, and having twenty-two individuals do 40% of the work was inefficient. (See Chandy Decl., Ex. 1.) Defendant requests the Court to reduce the lodestar by 20% or \$9,682. Additionally, Defendant contends that the Plaintiffs overestimated the amount of time required to respond to this motion.

Plaintiffs contend to have staffed 29 individuals for this matter. (Chandy, Decl., Section D.) To justify the reasonableness and efficiency of this group, Plaintiff provides non-binding federal law cases. The Court is not persuaded that Plaintiffs’ 29-person staff was efficient.

Defendant has provided authority and examples of how Plaintiffs' 29-person staff proved to be inefficient. In *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, the court found that staffing 10 attorneys on the lemon law case was "astonishing" and supported the trial court's finding that plaintiff's counsel failed to act efficiently. As the trial court was in the best position to evaluate the professional services rendered before it, it was not an abuse of discretion to reduce the request for attorneys' fees. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 256.)

Here, given the billing entries and the evidence of inefficiency demonstrated by Defendant, the Court will reduce the amount of attorneys' fees by 20% to account for the inefficiency of staffing 29 different individuals on a simple lemon law case. Thus, the attorneys' fees are reduced by \$9,682.

Next, the Court finds that the \$4,000 requested as an estimation of time to be spent responding to and attending the hearing for this Motion is unreasonable. Nowhere in the Motion or declarations do Plaintiffs justify the amount requested by explaining which of the 29 individuals' billing rates will be applied or how many hours they intend to spend on this Motion. Accordingly, the Court will not award the \$4,000 requested.

Accordingly, attorneys' fees are reduced by \$13,683.

d. Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (*Ketchum v. Moses* (2001) 24

Cal.4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Id. at 1139.)

Plaintiffs request a lodestar 1.35 multiplier enhancement of \$16,943.50. The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. Nothing before the Court indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. Further, in terms of the contingency basis, the Court finds that such consideration and risk is already included within the lodestar amount.

Accordingly, the Court declines to award a lodestar multiplier.

e. Costs

Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute “may be allowed or denied in the court's discretion.” (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both “costs” and “expenses.” (See Civ. Code, § 1794, subd. (d).)

“If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” [Citation.]” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Plaintiff requests a total of \$7,925.80 in costs. The cost items appear to be proper, and there was no opposition challenging any particular costs. Therefore, the Court awards Plaintiff the requested amount

without any reductions.

5.

#### Conclusion

The Court reduces the attorneys' fees by \$13,683 and does not apply the multiplier for \$16,943.50. The Court awards \$7,925.80 in costs and expenses.

Accordingly, the Court GRANTS the Motion for Attorneys' Fees, Costs, and Expenses in the reduced amount of \$46,652.80.

Plaintiffs are ordered to give notice.